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23-CIV-04969 GUILLERMO CORONEL VS. LARELL CARL FRANKLIN

LINE 2

GUILLERMO CORONEL
LARELL CARL FRANKLIN

CESAR R. FUMAR

PLAINTIFF GUILLERMO CORONEL'S MOTION TO VACATE ENTRY OF DEFAULT

TENTATIVE RULING:

The unopposed motion to vacate default judgment is granted pursuant to Code of Civil Procedure Section 187. The default entered on June 20, 2024 was premature because no statement of damages was served prior to entry as required by Code of Civil Procedure Section 425.11. Accordingly the Court hereby ORDERS the default VACATED.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-02345

CARRIE WONG VS. ANNIE MACH, DOCTOR OF DENTAL SUR, ET AL.

LINE 3

CARRIE WONG
ANNIE MACH

PRO PER
MICHAEL K. PAZDERNIK

PLAINTIFF CARRIE WONG'S MOTION FOR LEAVE TO FILE THIRD AMENDED COMPLAINT

TENTATIVE RULING:

Plaintiff Carrie Wong's Motion for Leave to File Third Amended Complaint is GRANTED.

The initial Complaint was filed on April 2, 2025. It was quickly amended to substitute Defendant Bayhill Dental Care, Inc. ("Bayhill") for a prior defendant named as "Bayhill Dental." (See Apr. 25, 2025, ¶¶ 1–2.) After Plaintiff Carrie Wong began representing herself in this action, she filed the Second Amended Complaint ("SAC") on July 25, 2025, now referring to Bayhill as the fictitious business name of Luisa Diaz and adding three causes of action for misrepresentation and UCL violations. (Jul. 25, 2025, ¶¶ 2, 10–14, 19–23, 33–36.) Because Wong did not seek or receive leave of court to do so, the Court struck the SAC *sua sponte*. (Sep. 10, 2025 Order.) Wong then filed the instant motion seeking leave to file a proposed third amended complaint.

A court may, in its discretion, allow amendment to any pleading upon any terms as may be just after notice to the adverse party. (Code of Civ. Proc., § 473, subd. (a); see *id.*, at § 576.) Motions for leave to amend are directed to the sound discretion of the judge, but that discretion must be "exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) "California courts have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." (*Douglas v. Superior Ct.* (1989) 215 Cal. App. 3d 155, 158.)

If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) However, "even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial." (*Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)

Bayhill, along with Defendant Annie Mach who joins in Bayhill's opposition, contends that the new allegations and causes of action to be added by the proposed amended complaint are not "new or different facts," citing *In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468. *Herr* is a motion for reconsideration case. Instead, when a party moves to amend based upon facts known from the outset of the case, the question is whether or not the moving party lacked diligence in bringing the motion and what effect any delay will have on the defendants. (*Landis v. Superior Court* (1965) 232 Cal.App.2d 548, 557.) And, when the motion is made "at a stage in the proceeding where pretrial or trial had not been set
